

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: July 27, 2026 at 1:30 pm

Rulings Posted: 7/24/26 at 4 pm

#	Case Name	Tentative
301	<i>AMERICAN EXPRESS NATIONAL BANK vs. MARDARESCU</i>	Moving counsel filed four motions to be relieved as counsel. The court notes the following deficiencies. There is no Declaration in Support for defendant Mircea Mardarescu. Only two proposed orders were submitted. One for Ox Car Care, Inc. and the other for Kathy McDonald. Those orders, however, are largely blank. The court continues the hearing from 7/27/26 to 10/12/26 at 1:30pm. Moving counsel shall ensure full compliance with Cal. Rules of Court, Rule 3.1362(e).

		Moving counsel shall give notice.
302	<i>C. vs. CTBPV LLC</i>	The Motion to be Relieved as Counsel, filed on 4/7/26 by Attorney Crystal Caigoy and Slater Slater Schulman LLP, as to the representation of Plaintiff J.C., is GRANTED, subject to submission of a revised proposed order, reflecting the current trial date. Relief will then be effective upon filing of a proof of service of the signed order upon the client. Moving counsel shall give notice.
303	<i>Anderson vs. Specialty Restaurants Corporation</i>	Defendant Nicholas Post's motion to vacate is GRANTED. The 2/20/26 entry of default (ROA 104) is vacated. (See Code Civ. Proc., § 473, subd. (b) and §473.5; Post Decl. at ROA 110 demonstrates mistake, inadvertence or excusable neglect; see also <i>Elston v. City of Turlock</i> (1985) 38 Cal.3d 227, 233 [requiring "very slight evidence" and resolving "all doubts ... in favor of the party seeking relief from default"].) In addition, the Court notes that while plaintiff served the first amended complaint (FAC) on Post by substituted service, there is no declaration of diligence attached to the proof of service as required by Code Civ. Proc., §415.20, subd. (b)(1). Further, in the opposition it appears plaintiff granted a two-week extension for Post to respond to the FAC which, according to the Court's calculations, resulted in the responsive pleading being due on 3/3/26, thus making plaintiff's request to enter default premature. Accordingly, the motion is GRANTED. The default at ROA 110 is VACATED and Post is granted leave to file the proposed verified answer and proposed cross complaint attached as Exhibits A and B to the declaration of James Bohm within 10 days.

		The court continues the 7/27/26 CMC to 9/8/26 at 8:45am in Dept. C24. Post shall give notice.
304	<i>Jinx vs. Family Orthodontics & Oral Surgery</i>	The Motion to Vacate or Continue the Trial Date, filed on 5/11/26 by Defendants Dean Azzeah, D.D.S. and Dean Azzeah D.D.S., Inc. dba Family Orthodontics & Oral Surgery (Defendants), is GRANTED as to the request for a continuance. The Motion shows good cause for a trial continuance, as Defendants have presented evidence demonstrating that their discovery efforts have been substantially impeded by the conduct of Plaintiff here. (Foxwell Decl., ¶¶ 7-21.) Plaintiff disputes that characterization but does not object to the proposed continuance. Under these circumstances, the requested continuance is warranted. The Court therefore continues the 1/19/27 trial date to 8/30/27 at 9:30am, with all related deadlines to be continued accordingly. Defendants shall give notice.
305	<i>Baptiste vs. County of Orange</i>	The court withholds a tentative ruling.
306	<i>Osorio vs. Bautista</i>	The Motion to be Relieved as Counsel, filed on 4/7/26 by Attorney Derek Herrera of Avrek Law Firm, as to the representation of Plaintiff Ignacio Artemio Hernandez Osorio, is CONDITIONALLY GRANTED. The Motion is primarily in order and unopposed. However, the proposed order needs revisions [check boxes 3(b), 5(a), and 9(a), and fill in for Boxes 6 and 7].

		The Motion is therefore CONDITIONALLY GRANTED, subject to submission of a revised proposed order. The 7/27/26 Case Management Conference is vacated and an OSC re: dismissal for failure to serve is set for 10/19/26 at 8:45am in Dept. C24. That new date should be included in the revised proposed order. Relief will be effective upon filing of a proof of service of the signed order upon the client. Moving counsel shall give notice.
307	<i>Lucas vs. Mercedes-Benz USA, LLC</i>	Defendant Mercedes-Benz USA, LLC's ("Defendant") Motion to Compel Arbitration ("Motion") is DENIED without prejudice. Defendant produced a purported lease agreement which plaintiff Adam J. Lucas ("Plaintiff") entered into with non-party Mercedes-Benz of Palm Springs for lease of a motor vehicle. (White Decl. ¶ 2, Ex. 1.) Plaintiff in the opposition contested the lease by pointing out the lease was not properly authenticated. "Authentication of a writing is required before it may be received in evidence." (Evid. Code § 1401.) Defendant cites to <i>Condee v. Longwood Management Corp.</i> (2001) 88 Cal.App.4th 215, for the premise that for purposes of a motion to compel arbitration it is not necessary to follow normal procedures for document authentication. (<i>Id.</i>, at 218.) However, <i>Condee</i> does not discuss the evidentiary burdens of the parties where the existence or authenticity of a contract is contested by the parties; <i>Condee</i> only addresses the initial burden on the motion. Once the lease/arbitration agreement is contested, such as here, Defendant is required to establish by a preponderance of the

evidence the document is valid. (*Espejo v. S. California Permanente Med. Grp.* (2016) 246 Cal. App. 4th 1047, 1060.)

Here, Plaintiff contested the authenticity of the lease, and it becomes incumbent on the Defendant to show by a preponderance of the evidence the lease is the document it is purported to be. Defendant failed to meet the preponderance of the evidence burden. Instead of producing any declaration of a person most knowledgeable, authentication or admission by Plaintiff as to the contents, or some other authenticating evidence/device, defense counsel improperly self-authenticated the lease without providing a basis for how he knows the document is what he states it is. Defendant failed to meet the requirements in the reply, instead relying on orders from other courtrooms in other lawsuits that have found the subject arbitration clause to be sufficient. Those orders do nothing to authenticate the subject lease in the present matter.

The court will not address the third-party beneficiary claims at this time as there is no valid arbitration agreement before the court showing Defendant may compel arbitration.

As Defendant has not produced by a preponderance of the evidence a valid arbitration agreement between the parties, the Motion is denied without prejudice to refile with proper evidence.

Plaintiff's RTJN:

Granted as to Exs. 1-3 pursuant to Evid. Code § 452(d).

Plaintiff's Objections:

		Sustained as to No. 1 (lacks foundation and personal knowledge, lacks authentication) Overruled as to Nos. 2 and 3. Plaintiff shall give notice.
309	<i>Regions Bank vs. BBS Trucking Inc</i>	Before the Court is a claim of exemption by BBS Trucking, Inc. (BBS) in which it claims that funds held in Chase Account XXXX6930 are exempt pursuant to Code of Civil Procedure §704.225. A timely opposition has been filed by judgment creditor Regions Bank successor by merger to Ascentium Capital LLC (Regions). For the reasons set forth herein, the claim of exemption is DENIED. Code Civ. Proc. § 703.580 sets forth the procedure for a hearing on a claim of exemption and provides: “(a) The claim of exemption and notice of opposition to the claim of exemption do not constitute an appearance pursuant to Section 1014. The power of the court over the exemption claimant is limited to determining the claim of exemption. (b) At a hearing under this section, the exemption claimant has the burden of proof. (c) The claim of exemption is deemed controverted by the notice of opposition to the claim of exemption and both shall be received in evidence. If no other evidence is offered, the court, if satisfied that sufficient facts are shown by the claim of exemption (including the financial statement if one is required) and the notice of opposition, may make its determination thereon. If a claim of exemption asserts that money in a judgment debtor's deposit account is or was necessary for the support of the judgment debtor and the spouse and dependents of the judgment debtor as provided in Section 704.225, the court shall review the judgment debtor's financial statement and make findings thereon. If not satisfied, the court may order the hearing continued

for the production of other evidence, oral or documentary. (d) At the conclusion of the hearing, the court shall determine by order whether or not the property is exempt in whole or in part. ...)

Here, the Notice of Filing Claim of Exemption, as well as the caption of the Claim of Exemption, shows the claimant as BBS Trucking, Inc. While BBS may have an interest in the funds in the account because it is the owner or co-owner of the Chase bank account, BBS is a separate entity and has no basis for claiming an exemption. The exemption under Section 704.225 does not apply to business accounts as the exemption is limited to the “judgment debtor’s deposit account” to the extent necessary for the support of the judgment debtor and his dependents. BBS has failed to meet its burden to establish the exemption under Section 704.225 as it has failed to establish the Chase Account 6930 is a personal account. The Claim of Exemption and Financial Statement do not say Chase Account 6930 is a personal account held Baljeet Singh or otherwise identify the name of the account holder.

In addition, if the account were the personal account of Baljeet Singh, he has failed to meet his burden to trace the funds. (Code Civ. Proc. § 703.080) BBS claims an exemption for all funds in Account 6930 rather than a specific sum, citing C.C.P. §704.225. The exempt funds are supposedly from his “wife’s separate property.” However, there is no evidence by way of documents or a declaration which would establish the entire account, or a part of the account, was from her income as a dispatcher.

For the foregoing reasons the claim of exemption is **DENIED**.

Regions shall give notice.

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